ONISMO MANDIZVIDZA
versus
THE STATE

HIGH COURT OF ZIMBABWE
KWENDA J
HARARE, 25 October 2023

Chamber Application for Condonation of Late Noting Appeal
And Extension of time within which to appeal

L A Kudadzaushe, for the appellant
T Kangai, for the respondent

KWENDA J: At the hearing of this matter, I dismissed the application and gave my reasons for doing so, orally at the sitting. This was a chamber application for condonation of late noting of appeal and extension of time within which to appeal. The applicant was convicted at Chivhu Magistrates Court under CRB CHVR 139/22 for Rape as defined in s 65(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] and sentenced on the 25th January 2023 to imprisonment for 18 years of which 4 years were suspended on condition of good behaviour. He did not appeal against the judgment, whereupon his right to appeal lapsed after 10 working days of being sentenced. In terms of r106 (1) of the High Court Rules, 2021, where a ***c***onvicted person fails to note an appeal in terms of these rules within the specified time limits, his or her right to appeal against conviction and sentence shall lapse.

The applicant later decided to appeal conviction and sentence, but realising that his right to appeal had lapsed, the applicant filed this chamber application, almost six months later, on the 24th July 2023, for condonation of his failure to note appeal and extension of time within which to appeal. The application is provided for in r 106 (2), which states that where the right of a convicted person to appeal against conviction and sentence has lapsed he or she may apply to a judge of the High Court for leave to note an appeal out of time by lodging an application. In terms of r106 (3), such an application shall be accompanied by a draft notice of appeal

complying with the appropriate provisions of these rules; and an adequate statement explaining why the appeal was not noted within the time specified by these rules.

The law to be applied in a case like this is, as stated above, set out in the Statute as well as decided cases. The statutory provisions referred to above require a draft notice of appeal to be submitted with the application. The draft notice appeal assists the court in estimating the prospects of success. Another requirement is an adequate explanation why the appeal was not noted within the time specified by these rules. The factors a court has to consider in determining an application for condonation are therefore as set out in *Maheya* v *Independent African Church* 2007 (2) ZLR 319 (S) at 323B-C it is stated that:

> "In considering application for condonation of non-compliance with its rules the court has a discretion which it has to exercise judicially in the sense that it has to consider all the facts and apply established principles bearing in mind that it has to do justice. Some of the relevant factors that may be considered and weighed one against the other are: the degree of non-compliance; the explanation therefor; the prospects of success on appeal; the importance of the case; the respondent's interests in the finality of the judgment; the convenience to the court and avoidance of unnecessary delays in the administration of justice."

The applicant's explanation for the delay is that he was unaware of his right to appeal against conviction and sentence. He said he was not legally represented on his trial because he could not afford legal representation. This case was his first time to be tried for any crime. He said he only became aware of his right to appeal through interaction with inmates at Chikurubi Prison whereupon he requested a relative who had visited him at Prison in June 2023, to find a legal practitioner to represent him. His legal practitioner of record was engaged to assist. The lawyer proceeded to Chivhu Magistrates Court on the 5th June 2023, where he perused the record of proceedings of the applicant's trial and paid for the transcription of the record. He visited the applicant at prison on the 20th June 2023 to advise him that his right to appeal had lapsed and that the appellant could only appeal after being granted condonation and extension of time within which to appeal. The applicant submitted that, in the circumstances, the delay in noting appeal was not as a result of negligence on his part.

He submitted that he had good prospects of success on appeal on the merits. He submitted that the trial court erred in convicting him because the evidence of his identification as the assailant by the complainant was unreliable. He averred that the complainant could not have properly identified the assailant in circumstances where there was no proper lighting in the room

where the rape took place and the rapist had had covered her face with a skirt. He submitted that the complainant's evidence was not corroborated. The complainant testified that her skirt was torn during the rape and for the purposes of corroborating the complainant's evidence, the State led evidence from a police officer and the complainant's employer, who both attended the scene, who both, testified that they had seen the complainant's torn skirt. However, the oral testimony was confirmed by real evidence in that the skirt was not produced in court. While the applicant admitted that he was at the bar where the complainant was serving patrons, the applicant said he was not the last person to leave the bar situated at the back rooms of which the rape took place. There were other men in the bar. One Trevor was the last person to leave the bar. He termed that that explanation a defence of an *alibi,* which he said was not disproved at the trial.

The State filed a response conceding to the application on the grounds than the applicant had given a reasonable explanation for the delay in noting the intended appeal. The response was unhelpful because, as it turned out the explanation for the delay given by the applicant and accepted by the State, was false. The applicant revealed, in answer to a question posed to him by the court, that the trial magistrate advised him of the right to appeal. The applicant was therefore, aware of his right to appeal. The delay in noting appeal of about six months was therefore wilful.

Somehow, the trial court omitted to place on record the explanation it had given the applicant regarding his right to appeal. It is worth pointing out that it is incumbent upon the court to advise any person who has been tried and convicted of an offence of his or her right to have the case reviewed by a higher court; or appeal to a higher court against the conviction and sentence. See s70 (5) of the Constitution. The magistrates court being a court of record, it expected that the explanation should be on record.

The applicant does not have prospects of succeeding on appeal. The trial magistrate found that the applicant was correctly identified as the assailant. The court found that the complainant had the opportunity to observe the applicant at the time the rape took place. The room where the complainant slept was illuminated by light from the veranda and a nearby shop. The complainant said the applicant was armed with a knife and when he covered her face she was able to see him at close range through the gap he had cut on her skirt. She had resisted the applicant for some time before she was overpowered and that gave her the opportunity to see him. She said she had had some conversation with the applicant regarding her boyfriend and he

had teased her by offering to be the go-between. It was during that discussion when he enquired about sleeping arrangements. The complainant testified that she made a report to her employer soon after the rape and in making the report she mentioned the applicant as the assailant, by name. She said the applicant was not a stranger to her since she was known to him prior to the crime. In any event the applicant had spent the day in the bar and had stayed until late.

The Police Officer who attended the scene said he saw the complainant's skirt which had a gap which appeared to have been made with the knife. He confirmed that complainant had told the Police the name of the applicant.

The delay in noting the appeal in this case was inordinately long. The explanation for the delay was false.

On the merits, I was not persuaded that there was room for error in identification. The parties were known to each other very well prior to the case. The applicant had for some reason, shown interest in knowing where exactly the complainant was going to sleep. In his defence the applicant had suggested that the allegations had been fabricated by the complainant's employer. Without proffering any reason why the complainant's employer would do that, the defence sounds improbable.

I therefore concluded that the intended appeal had no reasonable prospects of success on appeal.

There should be finality to litigation. It is clear that the applicant accepted the outcome of his trial. He only decided to contest the conviction after being encouraged to take a chance by inmates at Chikurubi Prison.

In the result, I dismissed the application.

KWENDA J:……